



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 8966 (EXTENSION)
THIRD REVISION August 30, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8966 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 30 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

All Pure Chemical Company
Tracy, CA

May 9, 1994

Hasa, Inc.
Santa Clarita, CA

June 27, 1994

Abcana Industries
El Cajon, CA

June 30, 1994

Action Chemical Company
Phoenix, AZ

July 13, 1994

GPS Industries
City of Industry, CA

July 19, 1994

CONTINUATION OF DOT-E 8966 (EXTENSION)

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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AUG 30 1994

DOT-E 8966
(THIRD REVISION)

1. Hasa, Inc., Santa Clarita, CA is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer package prescribed herein of a certain class 8 materials for transportation in commerce subject to the limitations and special requirements specified here. This exemption authorizes the shipment of sodium hypochlorite solution and hydrochloric acid solution in four one-gallon polyethylene bottles enclosed in a bag of polyethylene film, packed in a corrugated fiberboard box complying with DOT-12B except for hand holes authorized in side panels of box, and provides no relief from any regulation other than as specifically stated. Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991. (See Appendix A of this exemption)
2. BASIS. This exemption is based on Hasa, Inc.'s, application dated June 27, 1994, submitted in accordance with 49 CFR 107.105.
3. HAZARDOUS MATERIALS (Descriptor and class). Sodium Hypochlorite solution, and hydrochloric acid solutions in strengths up to 32.5%, classed as Class 8 materials.
4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.277(a)(1); 173.263.(a)(5); 178.205.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a FOL corrugated fiberboard box complying with DOT Specification 12B65 except that handholes are authorized in side-panels of box. Inside packaging must consist of not more than four polyethylene bottles of not more than one-gallon capacity each, enclosed in an inside bag of polyethylene film of not less than 0.002-inch minimum thickness. Packaging must be as depicted in petitioner's letter of appeal dated March 18, 1983, and box (w/handholes), closed as for shipment, must be capable of satisfactorily withstanding the performance tests described in that letter and in NSTA Test Procedure enclosed in application dated October 15, 1982.

8. SPECIAL PROVISIONS.

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a. Persons who receive the packages covered by this exemptions may reoffer them for transportation provided no ~~modifications or changes~~ are made to the packages, all terms of this exemptions are complied with and the current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. No new construction of this packaging identified in paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of this exemption, you may request a renewal to continue the use of the packaging manufactured prior to September 30, 1994. However, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provision of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. Compliance. Failure by a person to comply with any of the following may result in the suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 se seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

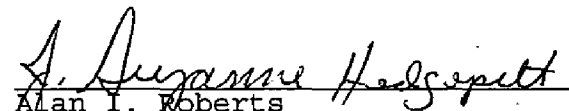
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11. EXPIRATION DATE. July 31, 1996.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D. C. 10590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

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APPENDIX A

The following are hereby granted party status to this exemption based on their applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon and 107.105.

GPS Industries, City of Industry, California, application dated July 19, 1994.

Action Chemical Company, Phoenix, AZ, application dated July 13, 1994.

Abcana Industries, El Cajon, CA, application dated June 30, 1994.